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California bans red dye No. 3 and other harmful substances in foods

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California Governor Gavin Newsom passed a landmark law banning the use of red dye No. 3 and other potentially health-hazardous food additives in consumer products.

This legislation, the first of its kind in the U.S., cancels a number of ingredients present in many popular snacks, beverages and other products, note the Environmental Working Group (EWG) and Consumer Reports, co-sponsors of the law.

The California Food Safety Act, also known as Assembly Bill 418, was passed Saturday and introduced by Assemblymembers Jesse Gabriel and Buffy Wicks in February.

It prohibits the manufacture, sale or distribution in California of food products containing red dye No. 3, potassium bromate, brominated vegetable oil or propylparaben.

Potassium bromate improves dough stiffness, brominated vegetable oil maintains flavor consistency in beverages, and propylparabens act as antimicrobial preservatives in foods.

Foods in California that are manufactured with these substances The EWG's Eat Well Guide reveals that nearly 3,000 products carry red dye #3 as a component. These include candies such as Skittles, Nerds and Trolli gummies, protein shakes, instant rice and potatoes, and prepackaged cake mixes.

Newsom, in his speech to the California State Assembly, cited EU-regulated Skittles as "conclusive proof" that the food industry can evolve to meet various public health regulations.

Newsom's move pushes the U.S. into alignment with stringent food safety measures in the EU, where these chemicals are banned due to health hazards including elevated risk of cancer, behavioral problems in children, reproductive and immune system damage.

The governor considers the law a "positive step forward" pending the U.S. Food and Drug Administration's (FDA) re-evaluation and review of the safety criteria for these additives.

When will the law be implemented? In California they will have to wait until 2027 for full implementation of the food law. This allows enough time for manufacturers to modify their formulas and eliminate these harmful chemicals, Newsom said.

He also stressed that Californians will continue to enjoy their favorite food products, but with greater confidence in their safety.

In contrast, the National Confectioners Association argued that Newsom's endorsement could erode consumer confidence and create uncertainty about food safety. They have urged FDA to articulate its position on the matter.

Currently, these additives can be incorporated into food products thanks to a loophole in the FDA's Federal Food, Drug and Cosmetic Act, known as the Generally Recognized as Safe (GRAS) rule.

This allows manufacturers to use ingredients in a manner or amount deemed safe by the FDA.

Considering the size of California's economy, this groundbreaking law could influence food safety measures across

the country, not just within California's borders, as Consumer Reports claims.

They propose that manufacturers are unlikely to make two variants of their products, one for California and one for the rest of the country. This hints that the ban could potentially benefit all Americans.

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